Global Shield Australia's Responses to JSCEM's Questions on Notice

17 November 2025

1. **Are there some practical examples around climate change or broader global threats to disenfranchisement?**

The next few decades will be characterised by increasing challenges for Australia, with converging threats posed by climate change, geopolitical tensions, resource constraints, health insecurity, and artificial intelligence. Each of these will create challenges for Australia's democracy, including for the ability for Australians to participate in democratic and electoral processes.

In its 2024 report, the Strengthening Democracy Taskforce in the Department of Home Affairs listed a "*new constellation of challenges to Australia's democracy*",[1] namely: foreign interference; artificial intelligence; social media and digital platforms; misinformation and disinformation; dissatisfaction with government and governing; inequality; discrimination and intolerance; and polarisation and division. These challenges – as well as climate change and other global threats – could disenfranchise voters and reduce the ability of ordinary citizens to contribute to the democratic process.

Recent events have provided a powerful example of how these forces are shaping democratic and electoral processes. Last year was the biggest election year in history with over 65 countries conducting national elections with around 2 billion eligible voters. According to the International Institute for Democracy and Electoral Assistance (**IDEA**), in 2024, elections in at least 18 countries were affected by natural hazards, impacting millions of voters around the world.[2]

For example, in the United States in 2024, very low temperatures and snow in January disrupted the Iowa Caucus, while wildfires affected the presidential primary elections in Texas in March and a June heatwave affected campaign events in Arizona and Nevada. Between August and October 2024, hurricanes Debby, Milton, and Helene disrupted registration and voting operations in several southeastern states. On election day, floods in Missouri disrupted voting, and killed two electoral officials.

Climate change and climate-related natural disasters can have direct impacts on elections,

[1] Department of Home Affairs Strengthening Democracy Taskforce, *Strengthening Australian Democracy: A Practical Agenda for Democratic Resilience* (2024) 26.
[2] IDEA, "The Impact of Natural Hazards on Elections", 4 November 2025. See also IDEA, *Election Emergency and Crisis Monitor: Mapping Impact and Response to Disasters* (2024).

including by making polling locations unusable or inaccessible, discouraging or blocking turnout (especially for vulnerable people), and challenging campaigning. In Australia, where about 85 per cent of voters cast their ballot in the final week (and about half on election day itself), a major natural disaster could significantly impair ability to vote.[3]

A major health crisis like a pandemic has the potential for disruption to elections not only by restricting voters but also electoral officials. The electoral process is a human-intensive activity. Emergencies or crises that restrict the capacity or mobility of people could have direct and indirect impacts on elections, as well on broader democratic processes.

The COVID-19 pandemic was a strong reminder of this risk. Its impacts mostly came in the form of delays to elections and access to polling locations due to quarantine, isolation and movement controls.[4] From the start of the pandemic in early 2020 to February 2022, at least 42 countries and territories decided to postpone national elections and referendums.[5] When conducted, voter turnout decreased in two-thirds of these countries compared to previous elections.[6]

Nearly all postponed elections were then subsequently held, though with variations in the delay.[7] For example, in Kiribati the delay was as short as eight days, as part of emergency measures in response to the pandemic. In Argentina, the government agreed with opposition party proposals to postpone mid-term legislative elections for three weeks. In New Zealand, Prime Minister Jacinda Ardern postponed elections by one month. Even in Australia, the local NSW elections of 2021 were delayed first by a year to 4 September 2021, and then again to 4 December 2021.

While natural disasters and a global pandemic have been Australia's recent experience, they are not the only ways electoral and democratic processes could be greatly disrupted. A major cyber attack on critical infrastructure, an artificial intelligence-enabled misinformation campaign, or a global conflict are plausible scenarios over the coming decade – a period in which we will see at least two federal elections. Australia has fortunately avoided a major disruption to a federal election or referendum to-date, but we must be prepared if we are not so lucky next time.

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[3] The Australia Institute, "The rise of early voting in Australian elections", 23 May 2025.
[4] Seonghui Lee, "When Elections Wait: A Cross-National Analysis of Election Postponement During the COVID-19 Pandemic" (2024) 78(1) *Political Research Quarterly* 151.
[5] IDEA, *Elections During Emergencies and Crises: Lessons for Electoral Integrity from the COVID-19 Pandemic* (2023) 55.
[6] IDEA, "Global overview of Covid-19: Impact on elections", 1 December 2022.
[7] Ibid.

2. **How are other countries adapting their electoral systems to account for climate change and are there lessons that we could be taking from them to build resilience?**

We acknowledge the important work that the Joint Standing Committee on Electoral Matters conducted in 2021 on elections during emergency situations.[8] That Inquiry made important findings and recommendations aimed at enabling the Electoral Commissioner to adjust electoral processes in response to emergencies.

A number of other jurisdictions have also considered and have measures in place to make their electoral systems more resilient to natural disasters and emergencies, including from climate change related impacts. Some examples of this include:

1. New Zealand has adopted a formal and whole-of-government "*Protocol on the Management of Election Disruptions*".[9] It covers natural hazards, cyber incidents and civil disruptions, among other potential threats and hazards. It sets out protocols around responsible agencies and individuals, potential responses and inter-agency coordination arrangements.

2. The Victorian Electoral Commission has established plans for crisis management. It also has regular inter-agency engagement with Emergency Management Victoria, which intensifies as an electoral event approaches.[10]

3. In the United States, in 2014 the National Associate of Secretaries of State prepared a report on state election emergency preparedness, including documenting what contingency plans various American states have in place.[11] This includes guidance for election officials on how to respond to emergency situations, communication plans, contingency plans for voting, power outage procedures, alternative polling location options, and procedures for securing election materials in emergency situations.

Australia must learn from other jurisdictions and put in place measures that remove or mitigate disruptions from a range of sources. This must also be accompanied by communication to the public of the contingency and emergency planning undertaken to reduce confusion or concern should these measures need to be activated. It is important that building electoral resilience must not only be focused on climate risk, but should also include global and catastrophic risk of all types.

Australia's broader disaster response arrangements should also integrate consideration of

[8] JSCEM, *Report of the Inquiry on the Future Conduct of Elections Operating During Times of Emergency Situations* (June 2021).
[9] New Zealand Electoral Commission, *Protocol on the Management of Election Disruptions* (August 2023).
[10] IDEA, *Managing Elections During Floods: The Case of Victoria, Australia* (July 2023).
[11] NASS, *State Laws & Practices for the Emergency Management of Elections* (February 2014; Updated April 2017).

democratic and electoral processes. Neither the Australia Government Crisis Management Framework nor the Australian Government disaster response plan (**COMDISPLAN**) – the two most important guiding documents for Australia's federal response to disasters and crises – make mention of elections. The promised Australian Government Catastrophic Crisis Plan (**AUSCATPLAN**) should also include consideration of democratic resilience in the context of responding to a 'Tier 4' catastrophic crisis.

3. **What powers do individual electorate officers have at the local level and are they sufficient in relation to physical and verbal confrontations? What is the legislative basis for those powers and the decision-making at booths?**

The Australian Electoral Commission's (**AEC**) core powers are established under the *Commonwealth Electoral Act 1918* (Cth) (the **Electoral Act**).

In relation to physical and verbal confrontations at polling places, s 348 of the Electoral Act specifies that persons must not commit misconduct in such premises, disobey lawful directions given by the person in charge of the premises, or enter or remain in such premises with permission. Any person who engages in such behaviour may be removed from the promises by a police officer or by a person authorised by the person in charge of the premises.[12]

The AEC noted in its submission to this Inquiry that it considers:

> *it would be appropriate for the Government to conduct a review of all offences in the Electoral Act to develop a coherent regulatory regime for elections. Many of the offences in the Electoral Act were introduced at different times, with the result that some are outdated or are drafted inconsistently with other related provisions. For these and other reasons, they are difficult to enforce. Including:*
>
> > *a) the penalties for contravention are inconsistent*
> >
> > *b) the effect of the provisions regarding misleading or deceptive conduct is unclear*
> >
> > *c) there are very limited legislative tools for managing interference or unacceptable behaviour at elections.*[13]

The AEC suggested consideration of the following measures in this context:

> *a) empowering the AEC to issue infringement notices (along similar lines to the power of the Information Commissioner)*
>
> *b) creating an offence prohibiting interference in an election (e.g., interference by domestic or foreign actors using AI, cyber-attacks, or social media)*
>
> *c) clarifying the legislative scope of the misleading or deceptive publications offence in section 329 of the Electoral Act (as outlined above).*

In addition to these views of the AEC, Global Shield Australia recommends that:

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[12] See also Australian Electoral Commission (**AEC**), Electoral Backgrounder - polling place and other offences, 14 November 2025.
[13] AEC, AEC Submission, Joint Standing Committee on Electoral Matters Inquiry into the 2025 Federal Election, October 2025, 13.

1. The AEC ensure its training of temporary electoral officials includes appropriate levels of detail on their powers to deal with disruptive behaviour, escalation triggers, and options for receiving additional support, and have guidance material available to officials during polling; and

2. The AEC considers enhancing its transparency in relation to the extent of the powers of polling officials and guidelines for how and when these powers may be used. This includes setting out the legal basis for their powers, what actions are prohibited or may be regulated, and how polling officials may intervene.

These measures would help ensure that polling officials understand the scope of their powers and how and when they can be used. They would also ensure that the voting public has a clear understanding of these powers and their rights when attending a polling place.

4. **Does the AEC have clear powers in terms of the decisions that they make on the ground when there are storms, bushfires and climate change issues affecting elections?**

In relation to broader powers of the AEC to respond to an emergency, as noted in Global Shield Australia's submission to this Inquiry, the Electoral Act was amended in 2021 to ensure the Electoral Commissioner could respond appropriately to emergencies impacting electoral events.

In particular s 396 was added to the Act, empowering the Electoral Commissioner to (among other things):

1. Expand the grounds on which a person in an area affected by an emergency may apply for a postal vote or pre-poll vote;

2. Extend the period during which applications for pre-poll votes may be made in the emergency area; and

3. Amend the number of scrutineers candidates are entitled to at a counting centre in the emergency area.

These powers can be exercised in limited circumstances, in particular where an emergency is declared under a Commonwealth emergency law and the Electoral Commissioner is satisfied that the emergency would interfere with the due conduct of an election in a relevant geographic area.

The Act also contains a number of other provisions providing flexibility in relation to electoral events impacted by certain incidents such as riots, storms, fires or health hazards (see e.g. ss 240A, 241, 242, 286, and 265).[14]

[14] See Joint Standing Committee on Electoral Matters, *Report of the Inquiry on the Future Conduct of Elections Operating During Times of Emergency Situations* (June 2021), paras. 3.38ff.

To ensure these powers can be used effectively and appropriately when needed, it is critical that:

1. The AEC has plans in place for when and how its powers may be used during an emergency, and that these plans are aligned with or integrated into broader crisis management planning, such as under the Australian Government Crisis Management Framework;[15]

2. These powers and plans are tested through exercises, tabletop exercises or similar mechanisms, to ensure that they are sufficient and to identify gaps in capabilities; and

3. The powers and plans are appropriately communicated to the public so that voters are aware of how these powers might be used during an emergency and to limit the potential for their abuse or misuse.

Global Shield Australia also notes the importance of reviewing these powers and plans to ensure they remain fit for purpose, including the decision made in 2021 to not include State and Territory declarations of emergency as triggers for the Electoral Commissioner's powers under s 396 (despite JSCEM's recommendation to this effect).[16]

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[15] Department of Prime Minister and Cabinet, *Australian Government Crisis Management Framework* (September 2025).
[16] Australian Government, *Australian Government Response to the Joint Standing Committee on Electoral Matters' Report: Report of the Inquiry on the Future Conduct of Elections Operating During TImes of Emergency Situations* (October 2021), 4.